

INTEGRATION AGREEMENT

This Integration Agreement ("**Agreement**") is entered into between Swiggy and the Partner whose particulars are set out in **Schedule 1** of this Agreement and shall be effective from the Effective Date as set out under **Schedule 1**.

Partner and Swiggy are hereinafter individually referred to as "**Party**" and collectively as "**Parties**".

WHEREAS:

- A. Partner is *inter alia* engaged in the business as set out under **Schedule 1**;
- B. Swiggy is engaged in the business of *inter alia* operating an online marketplace through its website and application for mobile and handheld devices, that enables transactions between participant restaurants/ merchants and customers, and also enables delivery and allied services.
- C. Swiggy has developed, owns and operates certain proprietary systems, including Model Context Protocol Servers ("**Swiggy MCPs**") etc.
- D. Partner has approached Swiggy to integrate its products / services / platform with Swiggy MCPs for the purpose of enabling its users to access Swiggy's services and has agreed to the said proposal on the terms and conditions contained hereunder.
- E. Swiggy has agreed to grant Partner access to Swiggy MCPs on the terms and conditions set out in this Agreement.

NOW IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES AS FOLLOWS:

1. PROPOSED ARRANGEMENT

- 1.1 The Parties, by executing this Agreement, intend to enter into an arrangement where:
 - (i) Partner will enable integration of <https://www.mcp.swiggy.com> website or mobile application or mobile site thereof with Partner and the corresponding mobile application or mobile site ("**Partner App**"), for placing orders with participating restaurants, search, discovery and/or to avail other services provided by Swiggy ("**Services**"), and transactions related to payments made by customers to avail the aforesaid Services ("**Order(s)**").
 - (ii) Such facilitation of Orders placed by customers through the Partner App will be made using an interface developed by the Parties by undertaking MCP integration between the Partner App and Swiggy MCP and hosted on Partner's ecosystem.
- 1.2 The arrangement set out in this Section (above), as further detailed in this Agreement, is hereinafter referred to as the "**Proposed Arrangement**".

2. INTEGRATION

- 2.1 As part of this Agreement and for the purposes of the Proposed Arrangement:
 - (i) Swiggy and Partner will undertake the integration between the Swiggy MCP and the Partner App using the MCPs to enable customers of both Parties to view the Services that are listed on the Swiggy website and/or application ("**Swiggy Site**") and to place Orders on the same ("**Listings**").
 - (ii) For the aforesaid purpose, Partner will make a real time MCP call to Swiggy to confirm the details and availability of the Listings for the customer to place the Orders ("**Customer Order**").

- (iii) In response to this MCP call, Swiggy agrees to: (a) confirm if the relevant order details pertaining to Customer Order are valid, and that such Order has been accepted and under process and (b) transmit a success message to the above effect to Partner.
- (iv) Except as otherwise provided under this Agreement including without limitation under Section 5 (Customer Support) of this Agreement, both the Parties will be solely responsible for the development, operation and maintenance of respective technology systems at their respective expense.
- (v) Partner shall, at all times and prior to any implementation, deployment, or operationalization thereof, furnish to Swiggy in writing full and complete technical details, specifications, and particulars pertaining to the proposed use, invocation, or integration of the Swiggy MCP by Partner's agents, services, applications, or systems, and shall not proceed with any such implementation save with the prior written consent of Swiggy.

3. OBLIGATIONS AND COVENANTS

Both Parties hereby agree and acknowledge to comply with the below terms and conditions (as applicable to the respective Party) at all times during the Term and subsistence of this Agreement:

3.1 Orders

- (i) Swiggy will be solely responsible for and will bear all risk and liability associated with the Listings that are displayed on the Swiggy website and app.
- (ii) Parties will adhere to the mutually agreed timelines provided for their respective obligations in this Agreement. These timelines include but are not limited to timelines for provision of MCP, service level agreements and customer support service level agreements ("**SLAs**"), and completion of Integration. The SLAs shall be mutually agreed between the Parties from time to time in writing (emails permitted).
- (iii) Swiggy holds no control over the prices/rates provided by the restaurants in relation to the Orders, and that such prices / rates shall be made available on "as is" basis.

3.2 Content

- (i) Swiggy agrees to provide to Partner all the content in relation to Listings, cancellation and refund policy available with Swiggy, and any other content including but not limited to trademarks, logos, and/or materials, information, images, text, graphics and/or any other content made available by the restaurants and/or sellers (collectively "**Content**"), All Content shall hereinafter be referred to as "**Swiggy Content**".
- (ii) Partner agrees to display the Swiggy Content supplied by Swiggy pursuant to this Agreement on "as is" basis without any modification and any modification of Swiggy Content mutually agreed between the Parties. In an event Partner modifies the Swiggy Content which further either changes the meaning of the Swiggy Content or such modification leads to supply of incomplete or wrong information to customers by Partner, in such event Partner shall be responsible to Swiggy for any claims made by customers for deficiency in services. Partner acknowledges and agrees to keep Swiggy indemnified against all such claims in this regard.
- (i) Swiggy Ownership: Swiggy shall own all right, title, interest (as applicable) including without limitation to the Swiggy Content and any derivative works thereof, Listings, copyrights, patents, trademarks, trade secrets and other intellectual property rights in

and to all the information, other material supplied by Swiggy to Partner pursuant to this Agreement, nothing contained in this Agreement shall be deemed to transfer, any rights, interest, or titles to Partner in any Swiggy Content, Swiggy Material (*defined below*), Listings, connections, features, and all relevant and related technical and supporting documentation. Partner acknowledges and agrees that all the Swiggy Content, Listings, Swiggy Material and other information and other material supplied by Swiggy pursuant to this Agreement constitutes Swiggy's intellectual property for the purpose of provision of the Agreement dealing with ownership and licensing of intellectual property rights.

- (ii) Third Party Ownership: Relevant third-party restaurants / sellers or entity acting on behalf of such third party restaurants / sellers, shall own all the rights, title or interests, including without limitation to all copyrights, patents, trademarks and other intellectual property rights, in and to its respective trademarks, logos, service marks etc.

3.3 Customer Ownership and Data Sharing:

- (i) Partner shall use, handle, store customer details attained under the Proposed Arrangement in accordance with applicable laws including Digital Personal Data Protection Act, 2023 and Digital Personal Data Protection Rules, 2025 solely for the purposes of consummation of the Orders (including to send messages to track Orders by customers). It is clarified that:
 - (a) Partner shall not use customer details attained under the Proposed Arrangement for any marketing activity, selling, leasing, monetization, bartering or exchanging or otherwise disposing off such customer details in any manner except as provided herein.
 - (b) Partner shall not use or store any information or data of customers who have attempted to place the Orders and whose transactions failed or were abandoned or their bookings were not confirmed, for any reason whatsoever, but the customer details were transmitted to Swiggy through the MCP shared by Partner.
- (ii) Except as expressly agreed between the Parties in writing, Partner shall ensure that no other transactional messages are sent to any customer placing the Orders.
- (iii) Partner hereby agrees to notify Swiggy at the earliest and no later than twenty-four (24) hours from the time it is reported to Partner or comes to the notice of Partner or if Partner has reasons to believe that a security breach or incident has occurred including if any third party is using the data of customers obtained by Partner under the Proposed Arrangement, for any purposes other than for consummation of the Orders. Notwithstanding anything hereunder, Swiggy shall have the right to suppress, restrict, filter or block the Listings of the providers who are in violation of this Agreement.
- (iv) In the event Swiggy receives a complaint / notice for improper or illegal usage of such data, subject to Swiggy providing to Partner a written confirmation that such improper / illegal usage is not attributable to Swiggy, Partner agrees to provide a written confirmation to Swiggy disclosing Partner's source of receipt of such customer data and further agrees to provide all information reasonably required by Swiggy to make its defense.

3.4 Marketing and Advertising:

- (i) _____ Parties shall mutually agree upon in writing the marketing deliverables in relation to the Proposed Arrangement, if any.
- (ii) _____ Partner hereby undertakes and agrees that, during the Term of the Agreement, it shall prominently display the notation '*powered by Swiggy*' within the Partner App at each and every location, interface, screen, page and/or point of access where the MCP

solution is hosted, embedded, integrated, deployed or otherwise made available to or accessible by its end users in such form and style as may be prescribed by Swiggy.

- (iii) Partner agrees that all marketing, advertising and/or branding of the MCP solution shall strictly adhere to the branding guidelines provided by Swiggy.

4. ADDITIONAL COVENANTS

In addition to its obligations under clause 3 above, Partner covenants and undertakes that, during the Term, Partner shall not and shall procure that its affiliates, employees, directors, contractors, agents and officers shall not:

- (i) Reverse engineer, decompile, disassemble or otherwise attempt to discover the source code or underlying ideas or algorithms to the Swiggy MCP and/or the Swiggy Site;
- (ii) Resell, lease, sublicense, distribute, expose or otherwise make the Swiggy MCP, the Swiggy Site, the Listings, the Services or any access credentials or APIs or MCPs available to any third party as a standalone product, service or offering;
- (iii) Remove, hide, obfuscate, mislabel or rebrand any Swiggy attribution, branding, logo, trademark or "powered by Swiggy" notation, or otherwise present the Services in a manner that creates user confusion as to the identity of the service provider or the source of the Listings;
- (iv) Use the Proposed Arrangement, the Swiggy MCP, Swiggy Site, Swiggy Content, Swiggy Material or any access granted under this Agreement, directly or indirectly, to (i) gather competitive intelligence on Swiggy, its Affiliates, restaurants, sellers, riders or users; (ii) benchmark, train, fine-tune or develop any product, model, dataset or service that competes with the Swiggy MCP, Swiggy Site or Swiggy's services; or (iii) provide any data or insights derived from the Proposed Arrangement to any competitor of Swiggy;
- (v) Display any prices, availability, ratings, ETAs, charges, taxes, offers or other order-related information that is materially different from, modified from, or inaccurate as compared to the information transmitted by Swiggy via the MCP, except as expressly permitted under this Agreement
- (vi) Copy any features, functions, integrations, interfaces or graphics which are part of the Swiggy MCP and Swiggy Site;
- (vii) Tamper with the security of the MCP including attempting to probe, scan or test the vulnerability or to breach the security or authentication measures;
- (viii) Exceed any rate limits, request quotas, data scopes, payload sizes, concurrency limits or other technical or operational limits notified by Swiggy from time to time, or attempt to circumvent, disable or work around any throttling, logging, security, authentication or audit controls implemented by Swiggy;
- (ix) manipulate, distort or interfere with any Orders, Listings, search rankings, recommendations, ratings, reviews, incentive, loyalty or rewards systems of Swiggy;
- (x) Flood the Swiggy Site and/or application with fake traffic; and
- (xi) Collecting or scraping data in any manner not authorized under this Agreement.

5. REPRESENTATIONS AND WARRANTIES

- 5.1 Each Party hereby represents and warrants to the other Party that:

- (i) It has all requisite right, power and authority to enter into this Agreement and perform its obligations and grant the rights, licenses, sub-license, and authorizations that it grants hereunder;
- (ii) It has the required technology and know-how to undertake the Integration with the others' website and applications for the purposes of the Proposed Arrangement detailed above
- (iii) It is compliant with all applicable laws which related to its performance under the Proposed Arrangement and will continue to comply with all applicable laws in relation to its performance of the obligations under this Agreement; and

5.2 Swiggy additionally represents and warrants to the Partner that:

- (i) It is duly organized, validly existing and in good standing under the applicable laws of the territory in which its business is registered, and that it is a resident of India for income tax purposes;

5.3 Partner additionally represents and warrants to Swiggy that:

- (i) Partner is an individual/ proprietor of a sole proprietorship, a citizen and resident of India and has attained the age of majority, and are fully competent to contract under the Indian Contract Act, 1872;
- (ii) Partner has all the necessary rights and interest in Partner Material including the right to grant and permit usage Partner Material by Swiggy;
- (iii) Partner Material does not violate any third-party intellectual property rights and there are no outstanding allegations of infringement of any third party rights by Partner Material;
- (iv) It has the necessary legal right to provide Swiggy the trademarks / logos of third-party which is part of the Partner Content, for use of Swiggy for the purpose of the Proposed Arrangement; and
- (v) Partner Material that will be provided by Partner to Swiggy in terms of this Agreement will be in compliance with applicable laws, including but not limited to the Information Technology Act, 2000 and the rules framed thereunder.

6. EXCLUSIVITY

6.1 During the Term, Partner shall not, directly or indirectly, partner with, collaborate with, license its name or otherwise engage with any other food delivery, dining out and/or quick commerce platform or technology provider for the purposes of developing, deploying, hosting, marketing or making available a solution similar to or substantially similar to the Proposed Arrangement as contemplated under this Agreement.

6.2 The exclusivity obligations shall apply for the full Term of the Agreement but shall cease upon expiry or termination of this Agreement.

6.3 Partner agrees and acknowledges that the breach by it of its obligations under this clause 6 will cause Swiggy irreparable damage for which recovery of money whether as liquidated damages or otherwise would be inadequate. Swiggy will therefore be entitled to obtain injunctive relief to protect its right under this Agreement in addition to any remedies available at law or equity.

7. CUSTOMER SUPPORT

- 7.1 Swiggy hereby agrees that all queries / complaints / grievances relating to the Orders will be addressed / resolved by Swiggy in accordance with the Customer Support SLAs. It is clarified that, any monetary or other customer dispute claims resulting from grievances / complaints raised by customers shall be borne by the Party responsible for the action resulting in the claim/ grievance/ dispute.
- 7.2 Any customer information shared by Swiggy with Partner is shared on the pre-condition that it will adhere to Swiggy's security policy and such information shall be used and treated in the manner set out in this Agreement. Partner hereby agrees and acknowledges that: (a) Swiggy will have the proprietary rights over the information of customers, which is shared by Swiggy in accordance with this Agreement; (b) Partner will use such customer information only for the specific purposes expressly contemplated under this Agreement and at all times in accordance with the applicable laws, and will not disclose, share or transfer such customer information with any person or third party without the explicit consent of Swiggy in writing, however, Partner will be liable and responsible for such third party's compliance with the terms herein.
- 7.3 In order to process the modifications, cancellations, and similar requests of the customer, Partner will make available to Swiggy its MCPs for the Integration.
- 7.4 Partner agrees to resolve any conflict or issue arising in relation to the Orders booked by the customer, if such conflict or issue is arising from any action or inactions of Partner.

8. FEE

Parties agree and acknowledge that Partner's access to Swiggy's MCPs made available to it by Swiggy together with the mutual covenants, rights and obligations set out in this Agreement, shall constitute good, valid and sufficient consideration for the performance of the Parties respective obligations hereunder and no other fees or consideration shall be payable by either Party under this Agreement, except as expressly agreed in writing.

9. LICENSE

9.1 Parties hereby agree that:

- (i) Partner grants Swiggy a royalty-free, limited, non-exclusive, sub-licensable, right and license during the Term to use, display (public communication), distribute, modify, re-format the Partner Material for display on the Swiggy Site or through any other communication channel and in any manner by Swiggy exclusively for purposes of the Proposed Arrangement. It is clarified that Swiggy may modify or reformat Partner Material only to re-size the Partner Material to the extent necessary for such display.
- (ii) Further, the Parties agree that Swiggy may adapt, create and exploit derivative works of any and all Partner Material with the prior written consent of Partner, which shall not be unreasonably withheld.
- (iii) Notwithstanding anything contained under this Agreement, the Parties hereby agree that any use of Swiggy's trademarks and/or logos (which form a part of the Swiggy Material), on any communication channel other than the Partner App shall be made with the prior written consent of Swiggy, which shall not be unreasonably withheld.
- (iv) It is clarified that no separate consideration shall be payable by either Party towards the license of its respective trademarks or material and such license is granted by the Parties to each other solely for the purpose of undertaking their respective obligations hereunder.

For the purposes of this Agreement, the term "**Swiggy Material**" shall mean any and all trademarks, logos and/or materials, information, and/or any content owned by Swiggy other than Swiggy Content provided by Swiggy to Partner in any manner whatsoever.

9.2 Swiggy Content. During the Term, Swiggy grants Partner, a royalty-free, limited, non-exclusive, sub-licensable, revocable right and license:

- (i) _____ to use and display the Listings, Swiggy Content, solely for the purposes of this Agreement,
- (ii) _____ use and display any marks, logos of the Restaurants or other third parties which Swiggy provides to Partner as part of the Swiggy Content solely for the purpose of the Proposed Arrangement (including for any marketing or advertising of the Proposed Arrangement). Partner acknowledges that the marks, logos, content, images, graphics, descriptions etc. of the restaurants or sellers provided as part of Swiggy Content are owned by the respective restaurants or sellers, or an entity acting on their behalf and their use by Partner in connection with this Agreement inures to the benefits of the such restaurants or sellers. Such restaurants or sellers retain all the right, title and interest the Swiggy Content supplied by them, and nothing in this Agreement grants any ownership interest therein to Partner. In the event Swiggy receives a request / notice from the owner of the Swiggy Content to direct Partner to stop or modify the Swiggy Content of the said owner, Partner upon receipt of such request / notice from Swiggy, will stop using the Swiggy Content or modify the same as specified by the owner of the Swiggy Content in the said request / notice (as the case may be) within a time frame as may be communicated by Swiggy to Partner in writing.

10. INDEMNITY

10.1 Partner agrees to release Swiggy from, indemnify, defend and hold Swiggy and its officers, directors, employees, agents harmless against, any direct claim, loss, damage, settlement, cost, taxes, expense or other liability (including, without limitation,) (each, a "**Claim**") arising from or related to:

Partner's actual breach of its representations, warranties and/or obligations under this Agreement including but not limited to:

- (i) Partner's failure to provide customer support and information in case of any delay/inconvenience suffered by the customer;
- (ii) provision of incorrect or inaccurate Order details provided to the customers for reasons solely attributable to Partner.
- (iii) _____ Failure to provide Partner Content in accordance with the terms of this Agreement
- (iv) _____ Any offer, sale, fulfilment, refund, or adjustments associated with the Orders to the extent that these are Partner's responsibilities.
- (v) _____ Partner's actual or alleged infringement of any intellectual property rights in respect of Partner Material and/or Partner Content; and
- (vi) gross negligence or misconduct by Partner or its agents, officers, employees, directors in the course of its performance of the obligations under this Agreement.

11. LIMITATION OF LIABILITY

11.1 Both Parties acknowledge and agree that neither Party shall be liable for any indirect, incidental or consequential damages (including special, indirect, incidental or consequential damages arising from the breach of this contract, lost business or lost profits, arising out of or in connection with this agreement), except as otherwise specifically agreed in writing by the Parties under this Agreement. Notwithstanding anything else contained in this Agreement, the aggregate liability of Swiggy, its Affiliates, group companies and their officers, directors, partners, employees and other representatives for any and all Claims arising out of this Agreement shall not exceed INR 50,000.

12. CONFIDENTIALITY

12.1 Both Parties agree that:

- (i) all Confidential Information will remain such Party's exclusive property;
- (ii) Either Party will use Confidential Information of the other Party only as is reasonably necessary for the purposes of the Proposed Arrangement and ensure that persons who have access to Confidential Information will be made aware of and will comply with the obligations in this provision; and
- (iii) Either Party will not disclose Confidential Information to any individual, company, or other third party, including any of its affiliates, subsidiaries, associate companies and/or group companies other than as permitted hereunder or as when specifically permitted by the disclosing Party in writing.

12.2 For the purpose of this Agreement, the term 'Confidential Information' shall mean '*any and all know-how, documentation and information, whether commercial, financial, technical, operational or otherwise in relation to the business, finances, affairs, tools, technology, products, services, personnel, customers, suppliers (including existing, future and potential personnel, customers and suppliers), prices, commissions, rates, vendors, processes, or methods of one party or its affiliates or group companies which is disclosed to or otherwise obtained by the other party in connection with this Agreement and the existence, terms and subject matter of this Agreement*'. The Party disclosing Confidential Information shall be referred to as the "Disclosing Party" and the Party receiving the Confidential Information shall be referred to as the "Receiving Party".

12.3 The restrictions under this clause 12 shall not apply to:

- (i) information which the Receiving Party can conclusively prove was already lawfully in its possession and was available to the Receiving Party on a non-confidential basis prior to its disclosure by Disclosing Party;
- (ii) information which is obtained by the Receiving Party from a Person other than the Disclosing Party or the Disclosing Party Representatives and who, to the best knowledge of the Receiving Party, was not prohibited from disclosing such information to the Receiving Party under a contractual, legal or fiduciary obligation to Disclosing Party or any Disclosing Party Representative (and without any breach of the obligations in this Agreement by the receiving Party or its Representatives);
- (iii) information which is lawfully and demonstrably in the public domain or becomes part of public domain after the date of disclosure other than through a breach of this Agreement by the Receiving Party;
- (iv) information which is developed independently of and without reference to any Confidential Information disclosed pursuant to this Agreement; and
- (v) information that is approved, in writing by the Disclosing Party, for general release or disclosure.

12.4 Either Party may not issue any press release or make any public statement related to this Agreement, Proposed Arrangement or the Services, or use our name, trademarks or logo of the other Party in any manner not authorized by such Party herein without prior written permission or misrepresent the relationship between the Parties in any manner.

12.5 Both Parties further agree not to disclose this Agreement (including its annexures and amendments), the contents or the existence thereof to any party without the prior written consent of the other Party.

12.6 Notwithstanding anything contained under this Agreement, the provision of this Section shall survive for a period of 3 (three) years from the date of expiry or termination (whichever) is earlier of this Agreement.

13. TERM, TERMINATION AND SUSPENSION

- 13.1 The Parties agree to enter the Proposed Arrangement for duration of 1 year, commencing from the Effective Date of this Agreement ("**Term**").
- 13.2 The Agreement may be terminated by either Party, with or without cause with a prior written notice of 30 (thirty) days to the other Party.
- 13.3 Notwithstanding the rights of the Parties under clause 13.2 above, Swiggy may immediately terminate this Agreement upon written notice if Partner:
- (i) breaches any applicable laws; and/or
 - (ii) breaches Clause 6 (Exclusivity), Clause 5 (Representations and Warranties), Clause 12 (Confidentiality), the Additional Covenants in Clause 4, or any of the data protection or security obligations set out in this Agreement.
- 13.4 Notwithstanding anything else contained to the contrary in this Agreement, Swiggy may, at any time, may suspend, throttle, rate-limit, restrict or revoke Partner's access (in whole or in part) at any time, with or without notice, where Swiggy reasonably believes that (i) Partner is in breach of this Agreement; (ii) Partner's use of the Swiggy MCP poses a security, integrity, availability, reputational or regulatory risk to Swiggy, its users, restaurants, sellers or any third party; or (iii) such suspension is required by applicable law or by direction of any governmental, judicial or regulatory authority. Suspension under this Clause shall not constitute a breach by Swiggy of this Agreement, shall not entitle Partner to any compensation, and shall be without prejudice to Swiggy's other rights and remedies, including the right to terminate this Agreement.
- 13.5 Upon expiration of the Term, this Agreement shall stand terminated unless both Parties mutually agree to renew this Agreement for any further period(s) they deem appropriate by way of an agreement in writing.

14. CONSEQUENCES OF TERMINATION & SUPPORT PERIOD

- 14.1 In the event a notice of termination is provided by either Party under Section 13.2 of this Agreement (above), the Parties agree that:
- (i) Until the expiry of the notice of termination, Parties will neither remove access to each others' licensed content as provided under this Agreement; and
- 14.2 Notwithstanding anything contained hereunder, upon the expiry or earlier termination of this Agreement, howsoever caused, for the purposes of phasing-out of this arrangement and in the interest of business continuity and customer service, the Parties agree to a phasing-out support period beyond the expiry or termination of this Agreement for which the Parties will continue to discharge their obligations in the manner and to the extent specified hereunder ("**Support Period**"). Such a Support Period will continue until the date by which all the Orders placed prior to the expiry or termination of this Agreement (including those placed during the termination notice period) have been fulfilled, cancelled or otherwise concluded in accordance with this Agreement, and in any event shall not exceed sixty (60) days from the effective date of expiry or termination, unless mutually extended in writing by the Parties. For the avoidance of doubt, it is hereby clarified that the Support Period is a phasing-out period beyond the expiry or termination of this Agreement for which, notwithstanding the termination of the Agreement, the Parties will continue to discharge their obligations in the manner and to the extent specified under the Agreement and such Support Period shall survive the termination of the Agreement.
- 14.3 Consequences for the Support Period: The Parties hereby agree that during the Support Period, Swiggy will be liable to provide: (a) continued fulfillment of Orders made till the expiry of this Agreement including the Orders made during the termination notice period, as the case may be; and (b) the support required for all such Orders in accordance with the Customer Support SLAs, including cancellation, handling customer calls, queries, grievances etc.

14.4 Immediately upon effective date of termination or expiry of this Agreement:

- (i) All licenses Parties have granted to each other under this Agreement shall cease.
- (ii) Partner shall immediately remove all the Listings from Partner App and remove any of marketing and branding material from Partner App and all other marketing channels.
- (iii) Partner shall cease to display on Partner App and destroy and delete from all its systems any and all originals, copies, reproductions, adaptations, extracts and summaries of Listings, Swiggy Content, and provide a written confirmation, on deletion of the same.

15. GOVERNING LAW JURISDICTION AND DISPUTE RESOLUTION

This Agreement will be governed by the laws of India. The courts at New Delhi will have exclusive jurisdiction in relation to matters and disputes arising out of this Agreement. All disputes and differences arising out of or in connection with this Agreement, if not resolved within fifteen (15) days through discussion between the Parties, shall be referred to arbitration by a sole arbitrator jointly appointed by both Parties. The decision and award determined by such arbitration will be final and binding upon the Parties. The Arbitration shall be conducted in accordance with the provisions of the Arbitration and Conciliation Act, 1996, as amended from time to time. The arbitration proceedings shall be conducted in English and the seat and venue of the arbitration shall be New Delhi.

16. NOTICES

Notices under this Agreement are sufficient if given by a Party by nationally recognized overnight courier service, speed post with acknowledgment receipt, email or personal delivery to the other Party, at the address of the Parties mentioned in this Section below. Notice is effective: (a) when delivered personally; (b) three (3) business days after sending by speed post; (c) on the business day after sending by a nationally recognized courier service; or (d) on the same business day if sending by email. A Party may change its notice address by giving notice in writing in accordance with this Section.

To Partner:

At the notice address set out under **Schedule 1**

To Swiggy:

Swiggy Limited

Attn: Legal Team

Email: legal@swiggy.in

Copy to: Survey No 14, No 158, 3rd-6th Floor, Tower I, Sumadhura Capitol Tower, Pattanduru Agrahara Village, K.R. Puram Hobli, Bangalore East Taluk, Bengaluru, Karnataka – 560066

17. AUDIT RIGHTS

During the Term and for a period of two (2) years thereafter, Swiggy (or an independent third-party auditor appointed by Swiggy) shall have the right, upon not less than 24 hours prior written notice to audit, inspect and review Partner's books, records, systems, logs, technical infrastructure, integration environments and operational practices solely to the extent relevant to (a) Partner's use of the Swiggy MCP, Swiggy Site, Swiggy Content and Swiggy Material; and (b) Partner's compliance with this Agreement (including data protection, security, confidentiality and exclusivity obligations). Partner shall provide reasonable cooperation, access and information to the auditors at Partner's cost where the audit reveals a breach by Partner, and otherwise at Swiggy's cost.

18. MISCELLANEOUS

- 18.1 **Force Majeure:** Neither Party shall be liable for any delay or failure in performance of any of their obligation under this Agreement to the extent such delay or non-performance of the

Obligation is caused by: (a) fire; flood; lightning; earthquake, explosion; war; embargo; epidemic; pandemic; internet failures, technology failures (b) act of God or nature; (c) acts or failures to act of any governmental authority; or (d) any other causes beyond its reasonable control and without the fault or negligence of the Party claiming excusable delay or other failure to perform, whether or not similar to the foregoing; provided that (i) the Party affected by force majeure shall promptly notify the other in writing of the occurrence and details of any force majeure that has caused or is likely to cause the notifying Party to either delay or fail to perform its obligations under this Agreement; and (ii) the Party affected by force majeure will use reasonable efforts to overcome or limit the effects of any such circumstances on the other Party.

Failure of a Party to perform under this Agreement due to the occurrence of an event of force majeure lasting more than thirty (30) continuous shall entitle the other Party to terminate this Agreement, upon seven (7) days' prior written notice, without any liability to the Party affected by such force majeure (other than accrued obligations as of the date of termination).

- 18.2 **Assignment:** Neither Party will transfer or assign all or any part of this Agreement without the other Party's prior written consent. However, Swiggy may assign this Agreement wholly to any of its Affiliates without obtaining any prior consent from Partner.
- 18.3 **Amendment:** No modification of this Agreement or any Annexure is binding unless it is in writing and signed by the Parties.
- 18.4 **Severability:** If any provision of this Agreement is determined by any court or governmental authority to be unenforceable, the Parties intend that this Agreement be enforced as if the unenforceable provision(s) were not present and that any partially valid/enforceable provision(s) be enforced to the extent that they are enforceable.
- 18.5 **Waiver:** A Party does not waive any right under this Agreement by failing to insist on compliance with any of the terms of this Agreement or by failing to exercise any right hereunder. Any waivers granted hereunder are effective only if recorded in a writing signed by the Party granting such waiver.
- 18.6 **Relationship:** Nothing in the provisions of this Agreement shall be deemed to constitute a relationship of partnership or agency between Swiggy and Partner.
- 18.7 **Counterparts:** This Agreement may be executed in any number of counterparts, each of which (including signature pages) will be deemed an original, but all of which together will constitute one and the same instrument.
- 18.8 Each Party shall be responsible for its own costs and expenses in connection with negotiation and finalization of this Agreement.
- 18.9 **Survival:** The provisions of the Agreement which are intended by the Parties to survive the expiry or termination of this Agreement, shall so survive.

IN WITNESS WHEREOF, Parties have executed this Agreement as of the Effective Date.

For and on behalf of (business name)	For and on behalf of Swiggy Limited
By: (business name)	By:
Name: Singireddy Rakesh Reddy	Name: Rohit Jalan
Title: Individual Developer	Title: Director – Business Finance
Signed Date: [—]	Signed Date:

Schedule 1

Details of Swiggy	Swiggy Limited, a public listed company incorporated under the laws of India, having its registered office at Survey No. 14, No. 158, 3 rd -6 th Floor, Tower I, Sumadhura Capitol Tower, Pattanduru Agrahara Village, K.R. Puram Hobli, Bangalore East Taluk, Bengaluru, Karanataka 560066 (" Swiggy ")
Name of the Partner	Singireddy Rakesh Reddy
Date of Birth of Partner	Wed Jan 24 2001 00:00:00 GMT+0530 (India Standard Time)
PAN Number of the Partner	LLHPS9180A
Name of Partner's Business	(business name)
Registered office of the Partner	Flat no:202, MSR Arcade, Uppal Bagayath, Hyderabad
Effective Date	09-Jul-2026
Business of Partner	Partner is <i>interalia</i> engaged in the business of General Purpose Home Robot
Notice Address of the Partner	Flat no:202, MSR Arcade, Uppal Bagayath, Hyderabad